

Vehicle Impoundment Support Unit (VISU)
VICTORIA POLICE VEHICLE IMPOUNDMENTS

Please Note: The Senior Officer VISU (OIC VISU) is the delegate for the Chief Commissioner of Police (CCP), for all applications made pursuant to Road Safety Act (RSA), Part 6A (vehicle impoundments).

VISU PBEA: VI-1255-MGR@police.vic.gov.au

CONSIDERATIONS FOR LISTING A HARDSHIP APPLICATION

1. What paperwork does the applicant have to validate the impoundment?

The applicant -

- If driver, will have received the VP1255 Notice of Impoundment from the impounding police officer roadside (at time of impoundment).
- If not the driver but is the registered operator or interested party, will have received a notification letter from VISDU within a week following the impoundment date.

2. What is the vehicle identification? Registration or VIN?

3. What date –

- was the vehicle impounded?
- scheduled for release (30 days)?

4. Who is the impounding police officer (informant)?

5. Does the applicant have a current driver licence?

- If the applicant has a driver licence that is suspended, or is disqualified, and that period exceeds the impoundment period, then RSA 84O(3A) states the Magistrates' Court must not consider any exceptional hardship caused to the offender.

6. Has the applicant given the CCP the required 7 days' notice of the application, including the Court venue and hearing date?

- RSA 84O(2A) states the applicant must give the CCP 7 days' notice of the application, including the venue of the Magistrates' Court at which it is to be heard.
- RSA 84O(2B) states the [application] must state the grounds for the claim of *exceptional hardship*.
- RSA 84O(2C) states The Magistrates' Court, must not deal with, or determine, an application... unless satisfied that the application has complied with... (2A) and (2B).

Please Note: the requisite notification provides sufficient time for VISU to provide a rebuttal argument to the prosecutions office to ensure the Court is informed of the facts in issue regarding the impoundment/involved parties. **It is critically important in the interests of community safety and preventing harm on our roads that the Court is fully informed when determining these applications.**

7. What other paperwork has the applicant received?

Has the applicant received a *Notice of Intention to Deem the Motor Vehicle Abandoned*?

- If yes, what is the *vesting date* (14 days from the date of the notice)? If the vehicle has **vested in the Crown**, then the applicant's rights to the vehicle as an interested party have been extinguished, pursuant to RSA 84ZQAB(3). Additionally, the vehicle is no longer an *impounded* or *immobilised* vehicle because it is owned by the Crown. Consequently, an application for hardship cannot be made.
- If a motor vehicle has already **vested in the Crown** (and prior to its disposal) an application may be made to the Court that a *motor vehicle is not abandoned*, pursuant to RSA 84ZQAD. An application that a motor vehicle is not abandoned, may be made in conjunction with a hardship application. However, the Court must order the motor vehicle is not abandoned before the hardship application can proceed.

Applications for hardship should not be listed if:

- The hearing date does not provide the required 7 days' notice to been given to the CCP, or
- The applicant (vehicle recipient) has a suspended or disqualified licence, or
- The motor vehicle has already vested in the Crown (no longer *impounded* or *immobilised*)

PLEASE NOTE:

For notification of hardship applications, the completed application document should be emailed to the following VISU PBEA: VI-1255-MGR@police.vic.gov.au

Please email any extracts/outcomes to VISU PBEA: impound.support@police.vic.gov.au